IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-512

CP (CAA) No.-114/230/232/ND/2022 (2nd Motion)

IN THE MATTER OF:

Adgyde Solution Pvt. Ltd & Anr. And Momagic Technologies Pvt. Ltd. **....Applicant**

SECTION

U/s 230-232 **Order delivered on 17.05.2023**

CORAM:
SHRI MAHENDRA KHANDELWAL,
HON'BLE MEMBER (JUDICIAL)

DR. BINOD KUMAR SINHA,
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant	: Mr. GP Madaan, Mr. Aishwarya Adlakha, Advs.
For the Respondent	:
For the OL	: Ms. Hemlata Rawat, Adv.
For the RD	: Ms. Niharika Tanwar, Adv.
For the IT Deptt.	: Mr. Abhishek Maratha, Sr. St. Counsel, Mr. Akshat Singh, Jr. St. Counsel, Mr. Bhanu Gupta, Adv.

ORDER

Heard the submissions made by Ld. Counsel for the Petitioner. Despite our clear order dated 03.05.2023, Income Tax Department has failed to file report in respect of transferor company no. 2. Report filed by the Income Tax Department in respect of transferor company no. 1 is also not reflected on the e-portal of the Tribunal. Proxy counsel for the OL stated that they have filed their report and they have no objection. Proxy counsel for the RD stated that they have made certain observations which has already been replied by the Petitioner. As affidavit filed by the Petitioner is already on record stating that if any tax liability arose in respect of transferor company Nos. 1 and 2, the same shall be paid by the transferee company. In view of the above, order in this matter is **reserved.**

S/d-
(DR. BINOD KUMAR SINHA)
MEMBER (T)

S/d-
(MAHENDRA KHANDELWAL)
MEMBER (J)

Amit Tiwari
17.05.2023